

UNITED STATES DISTRICT COURT EASTERN
DISTRICT OF THE STATE OF NEW YORK

-----X
WASHON MONTGOMERY,

Plaintiff,

-against-

THE CITY OF NEW YORK, POLICE OFFICER
CHRISTOPHER ALDEN, and POLICE OFFICERS JOHN
DOE #1-3,

Defendants.
-----X

PLAINTIFF DEMANDS A TRIAL BY JURY

INTRODUCTORY STATEMENT

1. The plaintiff, , brings this action under 42 U.S.C. Sec. 1983 and related state laws seeking compensatory and punitive damages and attorneys fees under 42 U.S.C. Sec. 1988 for the defendants' violation of their rights afforded by the United States and New York Constitutions and under the laws of the State of New York.

2. Defendants, CITY OF NEW YORK, POLICE OFFICER CHRISTOPHER ALDEN, and POLICE OFFICERS JOHN DOE #1-3, being employees of the New York City Police Department, respectively, violated plaintiff's civil rights without just and probable cause, causing him emotional and economic loss.

JURISDICTION

3. The Court has jurisdiction over plaintiff's claims under 42 U.S.C. Sec. 1983 pursuant to 28 U.S.C. Sec. 1331 and Sec. 1342(3).

4. The Court has supplemental jurisdiction over plaintiff's state law claims pursuant to 28 U.S.C. Sec. 1367.

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Index No.:

COMPLAINT AND JURY DEMAND

BLOCK, J.

REYES, M.J.
FILED

IN CLERK'S OFFICE
U.S. DISTRICT COURT E.D.N.Y.

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BROOKLYN OFFICE

5. Prior to commencement of this action and within 90 days of occurrence herein, on March 13, 2008, plaintiff served a Notice of Claim in writing, upon defendant, the City of New York, in accordance with Section 50(e) of the General Municipal Law.

6. A hearing was held pursuant to Section 50(h) of the General Municipal Law on May 9, 2008, and this case has not been settled or adjusted.

7. This action was commenced within one year and ninety days of the occurrence complained of herein that gave rise to plaintiff's injuries and plaintiff has complied with all of the prerequisites for bringing this action.

PARTIES

8. Plaintiff is a resident of the County of Queens, City and State of New York.

9. Defendant CITY OF NEW YORK is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York, and as such is responsible for the practices, policies and customs of the New York City Police Department, as well as the hiring, screening, training, supervising, controlling and disciplining of those persons employed by the New York City Police Department.

10. Defendant POLICE OFFICER CHRISTOPHER ALDEN and POLICE OFFICERS JOHN DOE #1-3, are being sued herein both in their individual and official capacities, are and were at all times hereinafter mentioned, and particularly on or about June 9, 2007, employed by the City of New York.

11. Defendants were at all times acting under color of state law, to wit, under color of the statutes, ordinances, customs, policies and/or practices of the State of New

York and/or the City of New York and defendants were also acting within the scope of and in furtherance of their employment.

FACTUAL ALLEGATIONS

12. Plaintiff was not guilty of any criminal acts.

13. On or about June 9, 2007, plaintiff WASHON MONTGOMERY was present in his home located at 187-23 119th Drive in Queens, New York, when POLICE OFFICER CHRISTOPHER ALDEN and POLICE OFFICERS JOHN DOE #1-3 came to his home, knocked on the door, entered his apartment without permission or authority and demanded to speak to him.

14. The plaintiff complied and came to the door to speak with the officers, when without explanation; he was placed in handcuffs and brought outside of his home.

15. Once the plaintiff was placed in handcuffs, POLICE OFFICER JOHN DOE #1, began to touch, squeeze, and rifle thorough his pockets.

16. POLICE OFFICER CHRISTOPHER ALDEN and POLICE OFFICERS JOHN DOE #1-3 then questioned the plaintiff and demand that he tell them the location of a "gun" and "gold Nissan" that were alleged to have been used in a past crime.

17. The plaintiff informed the officers that he did not drive a Nissan, but in fact drove and Honda and that he had no knowledge or information about a gun or any past crime involving the same.

18. The plaintiff was then placed inside of an unmarked police vehicle and transported to the 105th precinct.

19. Once at the 105th precinct, the plaintiff was placed in a room with POLICE OFFICER CHRISTOPHER ALDEN and POLICE OFFICER JOHN DOE #2.

20. The plaintiff was further interrogated and informed that a witness identified him, by way of photograph, as the individual who drove a gold Nissan and allegedly shot another individual in the stomach.

21. The plaintiff explained to the officers, that he was not involved in the aforementioned shooting incident.

22. Several hours later, the plaintiff was transported to Central Booking and charged with the crime of attempted murder.

23. The plaintiff was assigned a legal aid attorney, arraigned and bail was set in the amount of two hundred and fifty thousand dollars.

24. The aforementioned arrested was docketed under docket number 2007QN032034.

25. In Mid-August of 2007, after being held in jail for approximately two months, the plaintiff was transported to the 105th precinct and placed in a line-up.

26. The following day, the plaintiff was informed by his attorney that he was not identified in the line-up and as such he was released from jail.

27. After his release from jail, the plaintiff was still prosecuted until the criminal case was dismissed on February 7, 2008.

28. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdictional amount of the lower courts from all defendants.

**AS AND FOR A FIRST CAUSE OF ACTION –
VIOLATION OF CIVIL RIGHTS**

29. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 28 as if fully set forth herein.

30. As a direct and proximate result of the defendants' actions, plaintiff was deprived of rights, privileges and immunities secured to the Constitution and laws of New York and the United States, including, their rights under the Fourth, Eighth and Fourteenth Amendments, their person, to be free from unreasonable search, prosecution, false arrest and false imprisonment, to equal protection of the laws.

31. As a result of injuries and damages previously described in this complaint.

32. As a result of the amount that exceeds the minimal jurisdictional amount of the lower courts from all defendants.

33. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdictional amount of the lower courts from all defendants.

34. The defendants, their employees acted negligently, carelessly, and recklessly in arresting and detaining plaintiff.

35. As a result of the aforesaid, plaintiff sustained the injuries and damages previously described in this complaint.

36. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdictional amount of the lower courts from all defendants.

**AS AND FOR A THIRD CAUSE OF ACTION –
NEGLIGENT RETENTION AND NEGLIGENT HIRING**

37. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 36 as if fully set forth herein.

38. The defendants, their agents, servants or employees acted negligently, carelessly and recklessly in hiring and/or retaining the individually named defendants in that said individual defendants were or should have been known to be employees who abused and misused their position, who gave false information, or who acted intentionally and/or recklessly toward the public.

39. As a result of the aforesaid, plaintiff sustained the injuries and damages previously described in this complaint.

40. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdictional amount of the lower courts from all defendants.

**AS AND FOR A FOURTH CAUSE OF ACTION –
INTENTIONAL INFLICTION OF EMOTIONAL DISTRESS**

41. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 40 as if fully set forth herein.

42. The actions of the defendants in arresting the plaintiff who they knew or should have known was not guilty of a crime, were outrageous and beyond any norms acceptable to society.

43. As a result of the aforesaid, plaintiff sustained injuries and damages previously described in this complaint.

44. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdictional amount of the lower courts from all defendants.

**AS AND FOR A FIFTH CAUSE OF ACTION –
MALICIOUS PROSECUTION**

45. Plaintiff repeats and reiterates all of the allegations contained in paragraphs 1 through 44 as if fully set forth herein.

46. In commencing and continuing the said malicious prosecution, defendants caused the plaintiff to be falsely charged with acts in violation of the Penal Law of the State of New York.

47. At no time did the plaintiff commit, or attempt to commit, any act or offense for which an arrest may be lawfully made.

48. The had not given defendants probable cause to believe that he had committed the falsely charged acts for which he was arrested for.

49. The defendants knew, or should have known through the exercise of reasonable care and proper police procedure, that the said investigation into this matter was flawed and incomplete.

50. The defendants willfully, negligently and wrongfully accused the plaintiff of having committed acts in violation of the Penal Law of the State of New York.

51. The defendants willfully, negligently and wrongfully continued to prosecute plaintiff for alleged violations even though defendants knew or should have known of facts and circumstances that would have led a reasonable person to conclude that the criminal complaint, upon which said criminal prosecution was based, contained

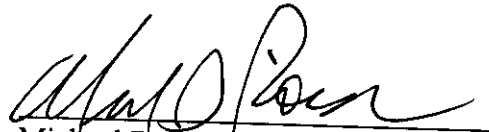
material falsehoods and was otherwise improper, and that the continued prosecution of the plaintiff was therefore improper, under the circumstances.

52. As a result of the aforesaid malicious prosecution, the plaintiff sustained injuries and damages previously described in this complaint.

53. As a result of the foregoing, plaintiff seeks compensatory damages in the amount that exceeds the minimal jurisdictional amount of the lower courts from all defendants.

WHEREFORE, plaintiff demands damages in an amount that exceeds the minimal jurisdictional amount of the lower courts for all defendants in each of the five causes of action along with punitive damages and attorney's fees, together with the costs and disbursements of this action.

Dated: New York, New York
November 3, 2008



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